



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6929
(FOURTH REVISION)

EXPIRATION DATE: January 31, 1997
See Appendix A for PTE Expiration
date(s)

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: U.S. Department of Energy
Washington, DC

(See Appendix A to this document for a list of additional grantees)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Division 1.3C rocket motors in non-specification packaging subject to the Special Provisions prescribed herein. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 172.101 Table Special Provision 109; 173.54(l) and 173.62(c) Table Packing Method E-146.
5. BASIS: This exemption is based on the application of the Department of Energy dated April 29, 1996, submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Rocket motors	1.3C	UN0186	II

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7. PACKAGING AND SAFETY CONTROL MEASURES:

PACKAGING - Packaging prescribed is that approved by the Bureau of Explosives (AAR), and in accordance with Thiokol drawing 7U47137 entitled "Shipping and Storage Container - XM468 Modified for Malemute Rocket Motor." Rocket motors may be shipped with igniters installed therein but without initiators, and in a propulsive state, only under conditions equal to those approved by the Department of Defense. Also, the packaging shown on Drawing 8U96149 dated 9/9/86 may be used.

8. SPECIAL PROVISIONS:

Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving fire, explosion or the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Marilyn J. Morris

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

October 22, 1996

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: USCG, FHWA
PO: ALB

APPENDIX A

The following are hereby granted party status to this exemption based on their application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon or 107.105, as appropriate:

Company Name City/State	Applica- tion Date	PTE	Expiration Date	Issue Date
Thiokol Corporation Brigham City, UT	8/22/94	1	8/31/96	9/30/94
Sandia National Laboratories Albuquerque, NM	6/12/96	2	1/31/97	10/22/96

Marilyn F. Morris

for Alan I. Roberts

Associate Administrator for
Hazardous Materials Safety